

25PR01491 Matter of The Josephine M. Bustamente Trust

County: sonoma

Division: Probate

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Motion: Petition to Confirm Trustee

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Petition to Confirm Trustee

Tentative Ruling: APPEARANCES REQUIRED. The Court finds certain matters can be decided as a matter of law on the pleadings before it and so rules as follows.

As to standing, the petitioner asks the Court to clarify that Johann Diaz (Johann) does not have standing as a named successor trustee of the trust he asserts was revoked. This is correct. The Court is aware of no legal basis to find that a person has standing as a trustee or an interested person solely by virtue of their being named as a successor trustee in a trust instrument before they take office. That said, Johann is the settlor's child and would be an intestate heir if the trust is found to have been validly revoked by the settlor. Johann is also the proponent of documents purporting to remove the petitioner as trustee and appoint Johann as trustee. Should Johann's allegations be proven and the trust is found to be revoked, Johann is an intestate heir. California Probate Code §48 and 1043 apply to hearings on petitions in trust proceedings, and allow interested persons to respond or object to such petitions. *Colvis v. Binswanger* (2023) 96 Cal.App.5th 393, 398. Also see *Hamlin v. Jendayi* (2024) 105 Cal.App.5th 1064, 1075. An interested person is one who has a property right in or claim against a trust estate or the estate of a decedent which may be affected by the proceeding. *Lickter v. Lickter* (2010) 189 Cal.App.4th 712, 728. When determining issues of standing pre-trial, the allegations of the person whose standing is contested are taken as true. See *Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1017. The Court notes, in light of the existence of the restraining order after hearing, that if a basis under Probate Code section 259 is established, Johann would be treated as having predeceased the settlor and would no longer be an heir. While a section 259 claim is not presently pled, the Court notes the petition was filed prior to the resolution of the elder abuse restraining order case and must consider that such an amendment may be sought.

As to the validity of the petitioner's authority as successor trustee based on the settlor's incapacity, the respondent's argument that the documents presented by the petitioner cannot support a finding that the settlor was incapacitated under the terms of the trust is incorrect. Trust section 7.5(a) indicates that subsections (i) through (iv) are disjunctive. Section 7.5(a)(i) can apply whether or not Nancy Hoffman, PsyD is board certified or the other requirements of 7.5(a)(ii) are satisfied. Section 7.5(a) of Trust states in relevant part:

(a) For purposes of this instrument, a person is deemed "incapacitated" or deemed to suffer from "incapacity" if any of the following circumstances apply:

(i) The person is unable to provide properly for that person's own needs for physical health, food, clothing, or shelter; to manage substantially that person's own financial resources; or to resist fraud or undue influence.

(ii) Either a medical doctor, board-certified neuropsychologist, or a board certified psychiatrist, not related by blood or marriage to any trustee or beneficiary, examines such person and declares under penalty of perjury that such person is either temporarily or permanently incapacitated, according to generally accepted medical definition.

The reports relied on by Petitioner to exercise his powers as successor trustee are sufficient under the requirements of the trust. Doctor Selvan is a licensed physician in the State of California, and she states settlor lacks capacity. Dr. Selvan's letter further clarifies that she is not related to settlor, nor is she a direct or indirect beneficiary of the trust. Doctor Hoffman is a licensed neuropsychologist in the State of California, with

specialized training and has testified as an expert witness on the issue of capacity before this Court on several occasions. The reports relied on by petitioner are valid determinations of the settlor's lack of capacity as required by the trust. As a result, the petitioner's assumption of the role of successor trustee and subsequent exercise of his duties as successor trustee under the terms of the trust is established by the undisputed evidence and the Court confirms the petitioner as the current successor trustee. Between now and when the remaining issues in this matter are finally determined the trust shall operate as a valid instrument currently in effect. That said, the Court does not think this finding precludes the ability of the objector to contest whether their opinions were correct, and whether the settlor actually did or did not have capacity is still something that can be litigated at the trial.

Petitioner shall submit an order after hearing consistent with the interim orders of the Court issued by this ruling.

The only issues to be set for trial will be the validity of the later executed November 2025 documents, of which the objector is the proponent, and undue influence. The objector shall have the burden of proof at trial to establish the validity of the later executed documents. As to who bears the burden of proof on the question of undue influence, and whether any presumption applies, that depends on what the evidence establishes. As a practical matter, petitioner shall present his case first. Counsel for the parties should be prepared to discuss their trial availability, their estimates for length of trial, and the amount of time needed to finish discovery and otherwise prepare for trial.

Finally, the objector asks the Court to order that the settlor be brought to court or order that the petitioner not remove the settlor from her assisted living facility at the time of the hearing. This request is an indication to the Court that the objector has no interest in the welfare of the elder here and completely misapprehends the rules applicable to this probate case. First, attendance at a court proceeding is a stressful and anxiety producing event for capacitated adults. There is ample evidence in the record that the settlor suffers from a significant degree of impairment from which the Court can draw the reasonable inference that attendance by the settlor has the potential to be even more upsetting than for the average person. Second, the risk of such emotional upset is offset by no possible gain in that this hearing involves no opportunity for the presentation of testimony from any party and the time for any objection has come and gone under Probate Code section 1043. And given the allegations of undue influence in this case, the idea of the Court requiring the settlor to state a position, which would have no evidentiary or legal effect, in the artificial environment of a brief court appearance involving family contestants is absurd, bordering on abusive. The settlor has received proper notice in this action, and the objector presents no legal authority supporting an order requiring the settlor to attend court. The request is just inexplicable, will accomplish nothing, has no legal basis, and yet is attended by the great potential to cause harm to the settlor. The Court will not order the settlor to attend the hearing under these circumstances.